

G.O.Ms.No.104, Genl. Admn. (Spl. B) Dept., dt.04.04.2003 regarding job chart for Chief Vigilance Officers / Vigilance Officers. Subject Heading : CVOs. VOs - job chart - issue of

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Read the following :

1. G.O.Ms.No.368, G.A. (SC.D) Dept, dt.29.06.93.
2. G.O.Ms.No.421, G.A. (SCD) Dept., dt.03.08.93.

ORDER :

In the G. O. first read above, orders were issued reviving the Vigilance Commission and appointing the Vigilance Commissioner. In the G.O. second read above, orders were also issued on the scheme of Andhra Pradesh Vigilance Commission. As per the Scheme there will be one Chief Vigilance Officer for each Secretariat Department and Vigilance Officers in all subordinate and attached offices and in all Government undertakings / Government Companies and such of the institutions as may be notified by the Government from time to time. The Chief Vigilance Officer may not be lower than the rank of a Deputy Secretary to Government and the Vigilance Officer shall be selected from among the senior Officers of the department. In Government Undertakings / Government companies and such of the institutions as may be notified by the Government from time to time the Vigilance Officers may be of such rank as may be decided by the Head of the Undertaking in consultation with the Commission. The Chief Vigilance Officers shall be appointed in consultation with the Commission and the Departments of Secretariat / Chief Vigilance Officers of the Secretariat Departments shall refer cases of nomination of Vigilance Officers in Heads of Departments / Public Enterprises / Other Institutions etc. to Vigilance Commission and obtain the concurrence of Vigilance Commission for such nominations. No person whose appointment as Chief Vigilance Officer is objected to by the Commission shall be so appointed. The Chief Vigilance Officer and the Vigilance Officers besides being the link between the Commission and the Departments should be the special assistants to the Secretary to the Government in the Department or Head of the Department, Undertaking / Government Company / such of the Institution as may be notified by the Government from time to time concerned in combating corruption, misconduct and malpractices in the Department / Government Undertaking / Government Company / such of the Institution as may be notified by the Government from time to time. The Chief Vigilance Officer will be responsible for coordinating and guiding the activities of other Vigilance Officers in the attached and sub-ordinate offices and other organisation for which his Department is responsible to the Legislature. Collectors of District shall be the Chief Vigilance Officers for their jurisdiction.

2. It has been brought to the notice of Government that the Chief Vigilance Officers / Vigilance Officers are not in position in all Departments of Secretariat, Offices of Heads of Departments, Public Enterprises and Autonomous Bodies, to which the jurisdiction of the Commission extends and their responsibilities and duties.

3. The Government after examining the matter carefully, hereby issue a job chart which is appended to this G.O. for Chief Vigilance Officers / Vigilance Officers covering their role, measures of Preventive Vigilance and their responsibilities.

4. All the Chief Vigilance Officers / Vigilance Officers of Heads of Departments and subordinate offices are directed to follow the job chart scrupulously.

5. All the Departments of Secretariat are also requested to serve the G.O. to the concerned Chief Vigilance Officers / Vigilance Officers under their administrative control.

THE ROLE OF CHIEF VIGILANCE OFFICERS / VIGILANCE OFFICERS

The role of Chief Vigilance Officer of a Secretariat Department or a Vigilance Officer of an office of the Head of the Department, a Public Enterprise and an Autonomous Institution to which the jurisdiction of the Vigilance Commission extends, may be broadly categorised in two parts viz., preventive vigilance and punitive vigilance.

Preventive vigilance

Measures of preventive vigilance include

- a) a detailed examination of the existing organisation and procedures in relation to each of the department functions with a view to eliminate or minimise factors which provide opportunities for corruption or malpractices;
- b) planning and enforcement of regular inspections and surprise visits for detecting acceptance of mamools or extraction of bribe or harassment of general public; misappropriation of funds; inordinate delay in disposal of applications; failure in quality or speed of work which would be indicative of the existence of corruption or malpractices;
- c) location of sensitive spots, regular and surprise inspections of such spots and proper scrutiny of personnel who are posted in sensitive posts which involve dealings, with members of the public on a considerable scale;
- d) preparation and maintenance of lists of officers of doubtful integrity and suspect officers and maintaining proper surveillance on officers of doubtful integrity and officers who are on the "Agreed" list; and
- e) ensure prompt observance of Conduct Rules relating to integrity; covering (i) statements of assets and acquisitions (ii) gifts (iii) relatives employed in private firms or doing private business (iv) benami transactions and the like.

A vigilance case arises only when there has lack of vigilance. The task of CVO / VO is not limited to interfering after faults and errors have been committed. The foremost object of his office is to prevent faults.

Four major causes of corruption are

- (1) Administrative delays.

- (2) Government taking upon themselves more than what they can manage by way of regulatory functions
- (3) Scope for personal discretion in the exercise of powers vested in different categories of Government Servants.
- (4) Cumbersome procedures of dealing with various matters which are of importance to citizens in their day to day affairs.

With regard to administrative delays the following steps can be taken:

- a) Undertake a review of existing procedures and practices to find out the cause of delay, the points at which delay occurs and device suitable steps to minimise delay at different stages:
- b) Prescribe definite time-limits for dealing with receipts, files etc. which should be strictly enforced.

With regard to the second cause a review of the regulatory functions which are its responsibility, with a view to see whether all of them are strictly necessary and whether the manner of discharge of these functions and of the exercise of powers of control are capable of improvement can be undertaken.

With regard to the third cause, adequate methods of control should be devised over exercise of discretion. The right to act according to discretion does not mean right to act arbitrarily. The fairness of the method by which the discretionary decision was arrived at may certainly be looked into.

Citizens should be educated properly with regard to the procedures of dealing with various matters and they should also be provided with an easy access to administration at various levels without the need for the intervention of touts and intermediaries in order to eliminate the fourth reason.

Some of the other important preventive measures can be :

- (i) Only those whose integrity is above board should be appointed to High administrative positions ;
- (ii) In making selections from non-gazetted to gazetted rank for the first time, all those whose integrity is doubtful should be eliminated;
- (iii) Every officer who sponsors a name for promotion should be required to record a certificate that he is satisfied that the Government Servant recommended by him is a man of integrity;
- (iv) An essential condition for grant of extension / re-employment should be that the person concerned has a good reputation for integrity ;

- (v) In every Ministry / Department, there should be a proper agency which a person with a genuine complaint can approach for redress. Bonafide complainants should be protected from harassment or victimisation ;
- (vi) All visitors to offices dealing with licences/permits should enter their names and purpose of their visits in a register to be kept at the Reception Office ; and
- (vii) Steps should be taken to prevent sale of information. Information not treated as secret should be made freely available to the public.

The first responsibility of the Chief Vigilance Officer on assuming office should be to acquaint himself fully with the sensitive spot in his Department with the procedures which appear to afford scope for corruption or delay; whether preventive measures have already been planned and, if so, whether they were being properly implemented. While he should also see that time-limits are prescribed and enforced for the processing of various applications, he should at the same time ensure that no indecent haste is shown with a view to oblige contactmen.

Punitive vigilance :

On the punitive side, the Chief Vigilance Officer's / Vigilance Officers' responsibility will be :

- (i) To ensure that charge-sheet, statement of imputations, lists of witness and documents etc. are carefully prepared and copies of all the documents relied upon and the statements of witnesses cited on behalf of the disciplinary authority are supplied wherever possible to the accused officer along with the charge-sheet ;
- (ii) To ensure that all documents required to be forwarded to the Inquiring Officer are carefully sorted out and sent promptly ;
- (iii) To ensure that there is no delay in the appointment of the Inquiry Officer, and that no dilatory tactics are adopted by the Accused Officer or the Presenting Officer ;
- (iv) To ensure that the processing of the Inquiry Officer's Reports for final orders of the Disciplinary Authority is done properly and quickly ;
- (v) To scrutinise final orders passed by the Disciplinary Authorities subordinate to the Department, with a view to see whether a case for review is made out or not ;
- (vi) To see that proper assistance is given to the ACB in the investigation of cases entrusted to them or started by them on their own source of information ;
- (vii) To take proper and adequate action with regard to writ petitions filed by accused officers ;
- (viii) To ensure that the Vigilance Commission is consulted at all stages where it is to be consulted and that as far as possible, the time limits prescribed for various stages are adhered to ;

- (ix) To ensure prompt submission of returns to the Commission ; and
- (x) To review from time to time the existing arrangements for vigilance work in the Department for vigilance work. Subordinate officers to see if they are adequate to ensure expeditious and effective disposal of vigilance work ;
- (xi) To ensure that the competent disciplinary authorities do not adopt a dilatory of law attitude in processing vigilance cases, thus knowingly or otherwise helping the suspect public servants, particularly in cases of officers due to retire ;
- (xii) To ensure that cases against the public servants on the verge of retirement do not lapse due to time-limit for reasons such as misplacement of files etc. and that the orders passed in the cases of retiring officers are implemented in time ;
- (xiii) To ensure that the period from the date of serving a charge-sheet in a disciplinary case to the submission of the report of the Inquiry Officer, should, ordinarily, not exceed six months.

Information about corruption, malpractices or misconduct may come to the CVO / VO from different sources. The CVO is also expected to scrutinise Reports of Legislative Committees like the Estimates Committee, Public Accounts Committee and the Committee on Public Undertakings, and Audit Reports, Proceedings of the Legislature and complaints and allegations appearing in the press relating to his own organisation, and to initiate action whenever any case having a vigilance angle comes to light from any of these sources. In particular, the CVOs should scrutinise the P.A.C. reports.

It will also be the CVO's / VO's responsibility to see that the following types of cases should generally be entrusted to the ACB for investigation :

- (i) Allegations involving offences such as bribery, corruption, forgery, cheating, criminal breach of trust, falsification of records etc. ;
- (ii) Possession of assets disproportionate to known sources of income ;
- (iii) Cases in which enquiries have to be made from non-officials and non-government records or books of accounts have to be examined ; and
- (iv) Cases of a complicated nature requiring expert police investigation.

With regard to complaints where it has been decided that the allegations should be looked into departmentally, the CVO should ensure that these investigations are completed promptly, say within a period of three months and the progress of those which remain pending beyond this period is reviewed by the CVO or an authority higher in rank to the officer investigating the case. The CVO should also ensure that the procedure prescribed is strictly followed by all the vigilance officers.

It will also be CVO's responsibility to obtain information about the disposal and pendency of complaints and vigilance cases from Vigilance Officers of all Heads of Departments and the Subordinate Offices/Units under his department.

The CVO should invariably review all the pending investigation reports, disciplinary cases and other vigilance matters in the first week of every month and take necessary steps for expediting action on the pending matters. In addition to this monthly review by the CVO, the Secretary of each Department and the Chief Executive of Public Sector Undertakings etc. should undertake a quarterly review of the vigilance work done in the Department / Organisation.

Although the discretion to place a Government Public Servant under suspension when a disciplinary proceeding against him is either pending or is contemplated is that of the Disciplinary Authority, the CVO would be expected to assist the Disciplinary Authority in the proper exercise of this discretion. The CVO should also ensure that all cases where an officer has remained under suspension for more than six months are reviewed, with a view to see whether the suspension order could be revoked or whether there is a case for either increasing or decreasing the subsistence allowance.

After the disciplinary authority has applied his mind to the Inquiry Officer's report and come to a tentative finding that one of the major penalties should be imposed, the final order should be carefully drafted. It should show that the Disciplinary Authority has applied its mind and exercised its independent Judgment. No reference should be made to the Vigilance Commission's advice in any order of the Disciplinary Authority.

The rules with regard to disciplinary proceedings will have to be scrupulously followed at all stages by all concerned and any violation of the rules would render the entire proceedings void.

The CVO, therefore, has the special responsibility to see that these rules are strictly complied with at all stages by all concerned.